

26STCV02203 26STCV02203

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 26STCV02203 Hearing Date: August 13, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 13, 2026

Case Name: Salcedo, et. al. v. Select

Portfolio Servicing, Inc., et al.

Case No.

26STCV02203

Matter: Motions to Compel Plaintiff Pablo Salcedo to respond
to Defendant Select Portfolio Servicing, Inc.'s Request for Production of
Documents and deem admitted Requests for Admission

Moving Party: Defendant Select Portfolio Servicing, Inc.

Responding Party: None

Matter: Motions to Compel Plaintiff Olivia Fabian to respond
to Defendant Select Portfolio Servicing, Inc.'s Request for Production of
Documents, Form and Special Interrogatories, and deem admitted Requests for
Admissions

Moving Party: Defendant Select Portfolio Servicing, Inc.

Responding Party: None

Tentative Ruling: Defendant

Select Portfolio Servicing, Inc.'s motion to compel Plaintiff Pablo Salcedo to serve responses is granted. Defendant's motion to deem admitted Requests for Admissions is granted.

Defendant

Select Portfolio Servicing, Inc.'s motion to compel Plaintiff Olivia Fabian to serve responses is granted. Defendant's motion to deem admitted Requests for Admissions is granted.

Plaintiffs Pablo Salcedo ("Salcedo")

and Olivia Fabian ("Fabian") ("Plaintiffs") brought this action against Defendants Select Portfolio Servicing, Inc. ("Defendant") and Us Bank National Association, as Trustee for JP Morgan Mortgage Acquisition Trust 2006 Cw2 and Does 1-10.

A.

Motions Against Plaintiff Salcedo

Defendant moves to compel Plaintiff

Salcedo to respond to Defendant Select Portfolio Servicing, Inc.'s Request for Production of Documents and deem admitted Requests for Admissions served on Salcedo. Defendant also requests the Court to impose monetary sanctions in the amount of \$1,550 against Salcedo for each motion. Salcedo did not file an opposition.

Defendant contends that on February 3, 2026, it propounded discovery on Salcedo, and to date, Salcedo has not served responses. (Ramos Decl., ¶¶ 3-6.)

Thus, the Court grants Defendant's motion to compel Plaintiff Pablo Salcedo to respond to Defendant Select Portfolio Servicing, Inc.'s Request for Production of Documents (Set One). Defendant Select Portfolio Servicing, Inc.'s Request for Admissions (Set One) are deemed admitted against Plaintiff Pablo Salcedo. The Court also grants Defendant's request to impose monetary sanctions against Plaintiff in the reduced amount of \$1,000 for both motions.

Plaintiff Pablo Salcedo is to serve

Code-compliant, verified responses to the entire set of Defendant Select Portfolio Servicing, Inc.'s Request for Production of Documents without objection, on or before September 14, 2026.

Sanctions are granted against Plaintiff Salcedo in the total amount of \$1,500. Sanctions are to be paid on or before September 14, 2026.

B. Motions Against Plaintiff
Fabian

Defendant moves to compel Plaintiff Fabian to respond to Defendant Select Portfolio Servicing, Inc.'s Request for Production of Documents, Form and Special Interrogatories, and deem admitted Requests for Admissions served on Fabian. Defendant also requests the Court to impose monetary sanctions in the amount of \$1,550 against Fabian for each motion. Fabian did not file an opposition.

Defendant contends that on February 3, 2026, it propounded discovery on Fabian, and to date Fabian has not served responses. (Ramos Decl., ¶¶ 3-6.)

Thus, the Court grants Defendant's motion to compel Plaintiff Olivia Fabian to respond to Defendant Select Portfolio Servicing, Inc.'s Request for Production of Documents, Form and Special Interrogatories (Set One), and Defendant Select Portfolio Servicing, Inc.'s Request for Admissions (Set One) are deemed admitted against Plaintiff Pablo Salcedo. The Court also grants Defendant's request to impose monetary sanctions against Plaintiff in the reduced amount of \$2,000 for all four motions.

Plaintiff Olivia Fabian is to serve Code-compliant, verified responses to the entire set of Defendant Select Portfolio Servicing, Inc.'s Request for Production of Documents, Form and Special Interrogatories, without objection, on or before September 14, 2026.

Sanctions are granted against Plaintiff Fabian in the total amount of \$2,000. Sanctions are to be paid on or before September 14, 2026.